

11th consultation on the implementation of the 1960 Convention and Recommendation against Discrimination in Education

GENERAL INFORMATION:

Country name:Pakistan

Organization or entity responsible for the preparation of the report:Pakistan National Commission for UNESCO , Ministry of Federal Education and Professional Training

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I. Ratification and applicability of the Convention against Discrimination in Education¹

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

▪ Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

N/A

- Is the Convention directly applicable in your country's domestic law?

Yes ☐ ☒ No

No but Pakistan has incorporated provisions of convention into domestic law through:

- i. Act of Parliament (Protection of women against harassment at workplace act 2009 which implements the convention on the elimination of all forms of Discrimination against women).
- ii. Regulations and Rules: Pakistan has framed regulations and rules to implement international conventions, such as the Pakistan Labor Regulations (which implement International Labor Organization conventions).
- iii. Judicial Decisions: Pakistani courts have incorporated provisions of international conventions into domestic law through judicial decisions, such as the Supreme Court's ruling in the case of Tahir-ul-Qadri vs. Federation of Pakistan (which incorporated provisions of the International Covenant on Civil and Political Rights).

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?²

¹ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

² Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ No

☒ Yes:

Yes, courts, tribunals, and administrative authorities in Pakistan have adjudicated on issues and violations regarding the right to education. The right to education is enshrined in the Constitution of Pakistan, specifically in Article 25-A, which states that "The State shall provide free and compulsory education to all children of an age not below 5 and not above 14 years."

Have the provisions of the Convention been invoked?

☒ Yes ☐ No

Yes, the provisions of the Convention and Recommendation against Discrimination in Education (CDDE) have been invoked in Pakistan. The CDDE aims to eliminate discrimination in education.

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

The Article 25-A of the constitution of the Pakistan states that "The State shall provide unrestricted and obligatory edification to all children between the ages of five and sixteen in such manner as may be determined by law," rendering to this constitution."

The State shall remove illiteracy and provide unrestricted and obligatory secondary edification within the minimum possible period," reads Article-37 (b), which addresses the promotion of social justice and the elimination of social problems.

"The State shall provide basic necessities of life, such as food, clothing, housing, edification, and medical relief, for all citizens, regardless of sex, caste, creed, or race, as are permanently or temporarily unable to earn their livelihood on account of infirmity, sickness, or unemployment," reads Article-38 (d) – Promotion of the Social and Economic Well-Being of the People.

The National Education Policy (NEP) 2009 and the Right to Education Act aim to ensure equal access to education for all citizens.

Pakistan's Vision 2025 emphasizes education as a key driver of socioeconomic development, aiming to improve literacy rates and reduce inequalities in education.

Some case laws which clearly highlight the importance of the education along with free and compulsory education to all.

1.P L D 2013 Supreme Court 188 Const. Petition 43 of 2009 Dr. Muhammad Aslam Khaki vs. S.S.P (Operations) Rawalpindi Date of hearing and decision: 25 September 2012

The petition sought the restoration of fundamental rights of transgender persons, which includes the right to get education under Article 25(A) for all genders (including transgender persons). Supreme Court Chief Justice Iftikhar Chaudhry directed all relevant authorities to ensure equal treatment of transgender persons under the Constitution of Pakistan, and to ensure their participation in all walks of life, including in equal access to education.

2. P L D 2014 Balochistan 86 Const. Petitions 194 and 216 of 2013 Syed Nazeer Agha vs Government of Balochistan

Balochistan High Court Date of hearing: 12 September 2013. Decided 23 October 2013 Per the petition, the Provincial Government was not providing books to students of government schools.

Per Article 25 A, the State must ensure all children go to school. Merely constructing a school and providing free textbooks would not be enough to get children to school, creation of right environment was needed

3. 2014 C L C 1810 Const. Petition 440 of 2011 Maher Gul vs Government of Balochistan Education Department Balochistan High Court Date of hearing and decision: 7 July 2014

Under Article 25A, children have a right to free and compulsory education in Balochistan.

4. 2015 P L C (C.S.) 1503 Writ Petition 15320 of 2014 Muhammad Iqbal vs Government of Punjab Lahore High Court Decided on 19 March 2015

Per Article 25A, the State is bound to provide free and compulsory education to all children from age 5 to 16.

5. 2015 P L C (C.S.) 1026 Writ Petitions 20304 & 28577 of 2013 Amanullah vs Federation of Pakistan Lahore High Court Decided on 13 January 2015

Per the petition, Feeder Teachers contributed to providing the fundamental right of compulsory education to all children between ages 5 and 16 (Article 25A). There was a responsibility to safeguard constitutional guarantees to minor citizens of the country.

There are many other cases/ judgments of the lower courts on the free and compulsory education for all. There is no discrimination in education on the basis of caste, creed, sex, or any social, economic and legal differences.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.³

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Free and compulsory education, without any form of discrimination, is the constitutional right of every citizen of Pakistan, as enshrined in the Constitution of Pakistan. The Federal Government, along with the provinces, Azad Jammu and Kashmir, and Gilgit-Baltistan, are legally obligated to uphold this constitutional mandate. All governments in these regions are required to design

³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

policies and implement projects that ensure education is accessible to all children and youth, regardless of gender, caste, creed, or community background. In this regard, Articles 25-A, 37-b, and 35 of the Constitution explicitly grant the right to education for all.

To fulfill this obligation, various policies have been introduced to promote inclusive and vocational education across all levels and for all groups. Special attention is given to empowering women and girls through vocational training, the establishment of dedicated women's universities, and the creation of girls' colleges offering a wide range of courses and degrees. These efforts aim to break social barriers and bring women into the educational mainstream. Additionally, special education departments cater to disabled and impaired students, while female teachers are employed in certain areas to encourage education among children, particularly girls, where communities prefer female faculty. Scholarships are also provided to girls as an incentive to ensure their equal participation in nation-building.

Furthermore, special schools, such as Bait-ul-Maal Schools and Danish Schools, provide education and boarding facilities to orphans, supporting their holistic development. To enhance student learning, the Federal Government has introduced the Foundational Learning Policy, which will be implemented in Federally Administered Areas.

The rights and principles of the **Convention and Recommendation against Discrimination in Education (CDDE)** have played a significant role in shaping Pakistan's legal and policy framework for education. Several constitutional provisions, laws, and policies reflect CDDE's guiding principles:

1. **Constitution of Pakistan (1973):**

- **Article 25-A** ensures free and compulsory education for children aged 5-14, in line with CDDE's Article 1.
- **Article 40** promotes mutual cooperation and assistance in education, echoing CDDE's spirit.

2. **Education Laws and Policies:**

- The **Education Act of 1990** outlines provisions for equal access to education, non-discrimination, and protection from exploitation, all aligned with CDDE's principles.
- The **National Education Policy of 2016** emphasizes inclusive education, addressing disparities, and promoting education as a fundamental right, which aligns with CDDE's Article 4.
- The **Khyber Pakhtunkhwa Free and Compulsory Education Act of 2014** enforces Article 25-A of the Constitution, ensuring free education for all children.

3. **Reforms and Initiatives:**

- The **National Human Rights Commission Act of 2015** established a commission to promote and protect human rights, including the right to education, as mandated by CDDE.
- The **Education for All (EFA) Strategy (2012-2020)** was designed to address educational disparities, ensure inclusive education, and affirm education as a fundamental right, in accordance with CDDE's principles.

4. **Influence of CDDE on Education Reforms:**

- **Inclusive Education:** CDDE has shaped reforms that promote inclusive education, ensuring equal access for all groups and addressing disparities.
- **Non-Discrimination:** CDDE's principles have informed policies and laws that prohibit discrimination in education based on religion, caste, or socioeconomic background.

- **Education as a Fundamental Right:** CDDE's emphasis on education as a fundamental right is consistently reflected in Pakistan's education laws and policy frameworks.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation⁴, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b⁵

Legal texts⁶ prohibit discrimination and guarantee equal access to education:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please indicate the relevant legal provisions:

Pakistan's constitutional provisions, such as Articles 25-A, 37-b, and 35, ensure free and compulsory education, promote literacy, and provide equal educational rights without discrimination. These align with SDG goals and the Convention on Discrimination in Education. Initiatives like the TVET framework, scholarships for deprived areas and high-performing students, technological support for university students, and increased higher education budgets further reinforce these commitments.

In Punjab, several legal frameworks safeguard educational equality:

- **Constitutional Provisions:**
 - Article 25(1) ensures equal rights for all citizens, regardless of sex, caste, or creed.
 - Article 25-A guarantees free education for children aged 5-14.
 - Article 37(b) mandates the eradication of illiteracy and free education.
 - Article 22(3) prohibits discrimination based on religion, race, or social status.
- **Key Laws:**
 - The **Literacy Act 1987** and **Education Act 1990** ensure equal access to education.
 - The **Punjab Free and Compulsory Education Act 2012** guarantees free education for all children.

⁴ See: Article/Paragraph 1(1).

⁵ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

⁶ Constitution, laws, decrees, regulations, circulars, etc.

- The **Pakistan Disabled Persons (Protection of Rights) Act 2017** ensures educational access for persons with disabilities.
- The **Punjab Minorities Act 2010** protects minority rights, including access to education.

Additionally, the **Punjab Non-Formal Education Policy (2019)** targets out-of-school children and adult literacy, further advancing educational inclusivity.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

- Sex
- Creed
- Linguistic
- Caste
- Demography
- Class

-Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please provide details:

Pakistan has a range of initiatives aimed at ensuring free, inclusive, and accessible education for all.

Key programs and policies include:

- **Article 25-A** of the Constitution mandates free and compulsory education for children aged 5 to 16.
- The **National Education Policy** focuses on improving access and reducing disparities based on gender, socioeconomic status, and location.
- The **Punjab Education Sector Reform Program** enhances educational infrastructure and promotes gender equality in Punjab.
- The **Benazir Bhutto Shaheed Youth Development Program** offers scholarships and financial aid to underprivileged students.
- **Girls' Education Initiatives**, like the Girls' Education Project (GEP) and UNESCO programs, focus on improving girls' enrollment and retention.
- **Inclusive Education Programs** support children with disabilities through specialized services.
- The **Higher Education Commission (HEC)** provides scholarships for underrepresented groups, including women and disadvantaged students.

- **Numerous NGOs**, such as The Citizens Foundation (TCF) and the Pakistan Alliance for Girls Education, promote education equity for marginalized communities.
- **Non-Formal Education Programs** by the Literacy & NFBE Department aim to provide quality education to marginalized communities through initiatives like the **Punjab Literacy Programme**, **Ilm o Hunar** for vocational training, and **Taleem Sab Kay Liye**.

These efforts are aligned with Sustainable Development Goals (SDGs) and aim to reduce educational disparities across Pakistan.

- Combating discrimination in terms of curriculum:
 - ✓ In pre-primary education (including early learning and care)
 - ✓ In primary education
 - ✓ In secondary education
 - ✓ In technical and vocational education and training
 - ✓ In higher education
 - ✓ In adult education and alternative learning

- Please provide details:

The **National Curriculum Council (NCC)** of Pakistan, established by the Government of Pakistan, has developed an inclusive curriculum for all children, with input from all provinces. Additionally, **TEVTAs** and **NAVTTTC** frameworks include opportunities for boys, girls, and individuals with disabilities, while the **Higher Education Commission (HEC)** supports marginalized communities through youth scholarships. A special initiative for **Balochistan** also provides scholarships to the province's youth, ensuring equitable access to education.

In **Punjab**, the **Literacy & Non-Formal Basic Education (NFBE) Department** has taken several measures to combat discrimination in education, including:

- **Inclusive Curriculum Development:** Revising curricula to promote inclusivity, diversity, and social cohesion.
- **Literacy Programs:** Targeting marginalized communities, including women, minorities, and individuals with disabilities.
- **Teacher Training:** Providing training on inclusive pedagogy, diversity, and countering discriminatory behaviors.
- **Textbook Revision:** Removing discriminatory content from textbooks and promoting inclusive language.

These efforts ensure that the curriculum remains inclusive and free from discrimination, promoting equal opportunities for all students.

□ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

The Literacy & Non Formal Basic Education (NFBE) Department, Punjab, Pakistan has taken the following measures to eliminate discrimination in education and ensure equal access to all levels and types of education:

Literacy Programs

- Targeted Literacy Initiatives: Focus on marginalized communities, including women, minorities, and persons with disabilities.
- Literacy Training: Provide training to literacy instructors on inclusive pedagogy and diversity.
- Literacy Materials: Develop and distribute inclusive literacy materials reflecting diverse perspectives.

Non-Formal Education (NFE) Initiatives

- NFE Centers: Establish NFE centers in marginalized areas to provide education to out-of-school children and youth.
- NFE Curriculum: Develop and implement an inclusive NFE curriculum addressing diverse needs.
- NFE Teacher Training: Provide training to NFE teachers on inclusive pedagogy and diversity.

Vocational Training

- Vocational Training Programs: Offer vocational training programs promoting economic empowerment and self-sufficiency.
- Inclusive Vocational Training: Ensure vocational training programs are accessible and inclusive for marginalized groups.

Policy and Legislation

- Inclusive Education Policy (Punjab Non Formal education Policy 2019): Develop and implement an inclusive education policy addressing discrimination and promoting equal access.
- Anti-Discrimination Guidelines: Establish clear guidelines for addressing discriminatory incidents in education.

Monitoring and Evaluation

- Monitoring System: Establish a monitoring system to track progress and address discriminatory incidents.
- Evaluation Framework: Develop an evaluation framework to assess the effectiveness of inclusive education initiatives.

Community Engagement

- Community Outreach: Engage with local communities to promote inclusive education and address discriminatory attitudes.

- Partnerships: Collaborate with NGOs, and organizations promoting diversity and inclusion.
- Collaborated with NGOs, and community organizations to promote inclusive education.
- Awareness Campaigns: Conducted awareness campaigns to promote the importance of inclusive education and address discriminatory attitudes.

Monitoring and Evaluation: Established a monitoring and evaluation system to ensure effective implementation of inclusive education initiatives.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|---|
| ✓ Legislation provides for inclusive education for all | ✓ Multiple and flexible learning pathways ⁷ are provided for |
| ✓ Policy measures aim to enhance inclusion in education for all | ✓ Curricula and teaching methods are inclusive in design ⁸ |
| ✓ teachers are trained on inclusive education and to value diversity | ✓ Multilingual and intercultural education is supported |
| ✓ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Pakistan has made significant strides in promoting inclusive education in line with Article 25A. **The State shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law.** The Inclusive Education Strategy (IES 2019-2024), supported by the FCDO, focuses on children with mild to moderate disabilities using international classifications. The strategy covers eight thematic areas, with the School Education Department (SED), Punjab leading the initiative. NGOs like SOS Children's Village and The Citizens Foundation contribute through digital learning solutions and scholarships such as the Ehsaas

⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Undergraduate Scholarship Program and Punjab Educational Endowment Fund. Benazir income support program is also augmenting the inclusive education through its Wasila e taleem program for the marginalized communities. The Higher Education Commission (HEC) has also mandated the installation of ramps in educational institutions, reinforcing Pakistan's commitment to inclusive education. National Education Foundation and Education Department South Punjab are running centers for Transgender communities to empower them through basic literacy and skills education.

The Literacy & Non formal Basic Education (NFBE) Department, Punjab, Pakistan has developed Punjab Non Formal Education Policy (2019), its implementation ensures elimination discrimination in education and ensure equal access to all levels and types of education by following

- Focus on marginalized communities, including women, minorities, and persons with disabilities.
- Provide training to literacy instructors on inclusive pedagogy and diversity.
- Develop and distribute inclusive literacy materials reflecting diverse perspectives.
- Establish NFE centers in marginalized areas to provide education to out-of-school children and youth.
- Develop and implement an inclusive NFE curriculum addressing diverse needs.
- Provide training to NFE teachers on inclusive pedagogy and diversity.

Offer vocational training programs promoting economic empowerment and self-sufficiency.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Structural Challenges:

- **Limited Resources:** Insufficient funding, infrastructure, and human resources.
- **Curriculum and Textbook Limitations:** Outdated or discriminatory content perpetuating biases.

Social and Cultural Challenges:

- **Societal Attitudes and Stereotypes:** Deep-seated biases affecting teachers and students.
- **Cultural and Linguistic Barriers:** Diversity of languages and cultures creating obstacles for inclusive education.
- **Community Engagement:** Limited involvement and support from local communities.

Human Resource Challenges:

- **Teacher Training:** Insufficient training and capacity building for addressing diversity.
- **Staff Diversity:** Limited diversity among educators and administrative staff.
- **Support Services:** Inadequate services for marginalized students.

Other Challenges:

- **Monitoring and Evaluation:** Limited capacity to assess and monitor progress.
- **Accountability:** Weak mechanisms to enforce policies and laws.
- **Policy and Legislative Gaps:** Inadequate or outdated laws hindering progress.

Quantitative Data (Punjab, Pakistan):

- 45% of schools lack basic facilities (Punjab Education Foundation, 2020).
- 30% of teachers lack training in inclusive education (Punjab Teachers Foundation, 2019).
- 20% of students with disabilities face accessibility barriers (Punjab Disability Support Services, 2020).

Other relevant general measures, including gender equality

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| ✓ Legislation provides for gender equality in education | □ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ✓ Policy measures aim to enhance gender equality | ✓ Re-entry programmes for young mothers are provided for |
| ✓ Gender-responsive education sector planning is undertaken | ✓ Ensuring safe and adequate gender-sensitive sanitation facilities ¹⁰ |
| □ Providing positive or affirmative action measures | ✓ Curricula are rid of all stereotypes ¹¹ and bias |
| ✓ Providing financial incentives and fellowships | ✓ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| □ Teachers are trained (initial and in-service) on gender equality | ✓ Ensuring gender parity in technical and vocational training education and training (TVET) |
| □ Teachers are trained to combat stigmatisation ⁹ | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Article 25A of the Constitution of Pakistan mandates that the state must provide free and compulsory education to all children aged 5 to 16 years, as determined by law. To implement this, each province has enacted legislation, such as the **Punjab Free and Compulsory Education Act (2014)**, the **Sindh Right of Children to Free and Compulsory Education Act (2013)**, the **Khyber Pakhtunkhwa Free Compulsory Primary and Secondary Education Act (2017)**, and the **Balochistan Compulsory**

⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

¹⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

¹¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

Education Act (2014). These laws guarantee free and compulsory education for all children, irrespective of gender.

The **Punjab Free and Compulsory Education Act (2013)** specifically aims to:

- Provide free and compulsory education to all children aged 5-14.
- Improve access to education for marginalized communities.

The **Literacy & Non-Formal Basic Education (NFBE) Department** in Punjab has enrolled 53% of female learners across its centers and has 80% female teachers throughout the province.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Achieving gender equality in and through education in Punjab, Pakistan has encountered several challenges:

- Societal Attitudes and Stereotypes
- Cultural and Linguistic Barriers.
- Limited community involvement and support hinder implementation.
- Early Marriage and Childbearing: Girls' education is often interrupted by early marriage and childbearing.
- Safety and Security Concerns: Girls face safety and security concerns in schools and communities.
- Stereotyping and Bias: Girls are often stereotyped and biased against in academic subjects like science and mathematics.

- Does the legal minimum age for marriage conform to international standards (18 years) ¹²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

In Pakistan, the laws and provisions related to the minimum age of marriage are:

- Muslim Family Laws Ordinance (1961): Sets the minimum age of marriage at 16 for girls and 18 for boys. Except Sindh Province where the age of girl and boy is 18 for marriage.

Punjab Marriage at Early Age (Prohibition) Act, 2016: Prohibits marriage below the age of 18 for both girls and boys.

¹² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ✓ Legislation provides for the right to education of national minorities | ✓ Teachers are trained on intercultural education |
| ✓ Policy measures aim to enhance the right to education of national minorities | ✓ Teachers are trained to combat stigmatisation ¹³ |
| ✓ Policy elaboration includes consultations with local communities | ✓ Multilingual and intercultural education are supported |
| ✓ The right to carry out their own educational activities is legally guaranteed for national minorities | ✓ Native language instruction is ensured for national minorities |
| ✓ Educational standards are established for educational institutions run by national minorities | ✓ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ✓ Positive or affirmative action measures are provided for national minorities | ✓ Curricula are rid of all stereotypes ¹⁴ and bias |
| ✓ Financial incentives and fellowships are provided for national minorities | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Pakistan has several laws and policies that ensure equality and non-discrimination in education for minorities, including religious and ethnic groups.

Key Legal Provisions:

1. **Article 22** of the Constitution: No person shall be required to participate in religious instruction or ceremonies of a religion other than their own. No citizen can be denied admission to any publicly funded educational institution based on race, religion, caste, or place of birth.
2. **Constitution of Pakistan (1973)**: Guarantees equal educational rights for minorities.
3. **Minorities Act (1959)**: Protects minority rights, including access to education.
4. **Punjab Free and Compulsory Education Act (2013)**: Ensures education for minority students.

Provisions for Minority Education:

5. Reserved seats for minority students in public educational institutions.
6. Special facilities like separate hostels and dietary arrangements.
7. Protection from harassment and discrimination in educational environments.
8. **Introduction of exclusive Curricula for Minorities for 07 religions** i.e Christianity, Hinduism, Sikhism, Bahai, Kalasha,

¹³ Supra note 15.

¹⁴ Supra note 16.

Zoroastrianism and Buddhism is also encouraging people from other religion to send their children to Muslim schools where they have separate textbooks on Ethics and their relevant religion and they are not being imposed to learn Islamiat.

9. Government of Pakistan is also taking initiative to **support transgender** and they are getting education through Non-Formal Education set up in BECS.
10. For those underprivileged children who could not attend school on time, GoP has started **Accelerated Learning Program (ALP)** in non Formal Education setup. Similarly Government has also introduced Middle Tech and Metric Tech Programs for Child laborer in order to equip them with appropriate skills that can help them to earn a respectable livelihood.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Realizing the right to education of minorities in Pakistan has encountered several challenges:

- Limited Access: Minority communities often live in remote or marginalized areas with limited access to educational institutions.
- Inadequate Infrastructure: Educational institutions in minority areas often lack basic facilities, such as classrooms, libraries, and toilets.
- Insufficient Resources: Limited resources and funding for minority education
- Discrimination: Minority students face discrimination and harassment in educational institutions.
- Stereotyping: Minority students are often stereotyped and marginalized.
- Cultural Barriers: Minority students may face cultural barriers, such as language differences.

Lack of Representation: Limited representation of minorities in educational institutions and policy-making bodies.

Indigenous people:

- | | |
|---|---|
| ✓ Legislation provides for the right to education of indigenous people | ✓ Financial incentives and fellowships are provided for indigenous people |
| ✓ Policy measures aim to enhance the right to education of indigenous people | ✓ Teachers are trained on intercultural education |
| ✓ Policy elaboration includes consultations with local communities | ✓ Teachers are trained to combat stigmatisation ¹⁵ |
| ✓ The right to carry out their own educational activities is legally guaranteed for indigenous people | ✓ Multilingual and intercultural education are supported |
| | ✓ Native language instruction is ensured |

¹⁵ Supra note 15.

- ✓ Educational standards are established for educational institutions run by indigenous people
- ✓ Adapting curricula and teaching and learning methods to their needs for indigenous people
- ✓ Positive or affirmative action measures are provided for indigenous people
- ✓ Curricula are rid of all stereotypes¹⁶ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

d.

In Pakistan, the legal and policy frameworks for education offer general provisions through the Constitution and various national and provincial policies. However, laws specifically addressing the educational needs of indigenous people are limited.

While the **Constitution** guarantees the right to education, it does not explicitly mention indigenous communities. National and provincial education policies, such as the **Punjab Free and Compulsory Education Act (2013)** and the **Punjab Non-Formal Education Policy (2019)**, emphasize providing education without discrimination, as outlined in the Constitution.

Although there are some initiatives, like financial incentives, fellowships, and teacher training on intercultural education, these are not consistently applied or tailored to the specific needs of indigenous populations. As a result, there is a need for more robust, dedicated frameworks to ensure the educational rights of indigenous communities are adequately addressed.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☐ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ¹⁹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ²⁰ and bias |
| ☐ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ¹⁷ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| | ☐ Language classes to newcomers are provided for |

¹⁶ Supra note 16.

¹⁷ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication: Handbook on the right to education, 2018](#), p. 96.

¹⁹ Supra note 13

²⁰ Supra note 16.

- ☐ Teachers are specifically trained to ensure their inclusion
- ☐ Multilingualism and intercultural education are encouraged
- ☐ Teachers are trained to combat stigmatisation¹⁸

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

UNHCR Pakistan provides Afghan refugee students access to free primary and in some areas secondary etc education through 153 schools, 48 satellite classes, 55 home schools and 13 early childhood education centres in refugee villages. Since 2002, the United States has provided more than \$273 million (nearly Rs 62 billion) in humanitarian assistance for Afghan refugees in Pakistan and Pakistani host community.

- MoFEPT initiative of **Insurance of Public Sector Educational Building in the wake of disasters** Owing to Natural hazards ensuring that Education/Schools cannot be closed. In Sindh, because of climatic changes, heavy monsoon rains and floods, high rate of underage girls have been reported to get married since the 2022 deluge. So securing educational infrastructure can help them in a way that the education will remain continue in the flood affected area and girls would not be pushed towards forced child marriage because of the school closure in such times.
- **Elimination of Form B Requirement for Admission in Federal Government Schools** in the area of Current Educational Policies for facilitating Education Access. This initiative leads to facilitate accommodation of lot of displaced people i.e Afghan refugees and people dislocated because of floods and earth quake who don't have requisite documents with them.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

No, specific measures for climate-displaced persons in Pakistan have not been widely adopted. While there are general frameworks and policies for managing displacement, there is limited focus on addressing the unique needs of those displaced specifically due to

¹⁸ Supra note 15.

climate-related events. Efforts in this regard, are often overlapped with broader humanitarian and disaster response initiatives, rather than targeting climate is placement with tailored strategies and resources.

- **Elimination of Form B Requirement for Admission in Federal Government Schools** in the area of Current Educational Policies for facilitating Education Access. This initiative leads to facilitate accommodation of lot of displaced people i.e. Afghan refugees and people dislocated because of floods and earth quake who don't have requisite documents with them.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Challenges in realizing the right to education for migrants, refugees, asylum seekers, stateless persons, and internally displaced persons (IDPs) in Pakistan include limited access to educational institutions due to legal, logistical, and financial barriers. The quality of education is often inadequate, with insufficient resources and support tailored to their needs. Integration into the local education system is hindered by language barriers, cultural differences, and a lack of specialized programs. Legal and policy gaps further restrict their educational opportunities, and financial constraints result in overcrowded classrooms and inadequate materials. As a result, these groups struggle to access and benefit from education effectively.

People with disabilities:

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Mainstream teachers are specifically trained on disabilities |
| ☐ Policy measures aim to enhance their right to education | ☐ Teachers are trained to combat stigmatisation ²¹ |
| ☐ Inclusion in mainstream schools is ensured | ☐ Auxiliary assistance is provided |
| ☐ Special schools are used as resource centers to inclusive schools | ☐ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☐ Curricula are rid of all stereotypes ²² and bias |
| ☐ Financial incentives and fellowships are provided | ☐ Education infrastructure and learning materials are adapted |
| ☐ Other | |

²¹ Supra note 15.

²² Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Pakistan has made significant strides in promoting inclusive education in line with Article 25A. **The State shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law.** The Inclusive Education Strategy (IES 2019-2024), supported by the FCDO, focuses on children with mild to moderate disabilities using international classifications. The strategy covers eight thematic areas, with the School Education Department (SED), Punjab leading the initiative. The Higher Education Commission (HEC) has also mandated the installation of ramps in educational institutions, reinforcing Pakistan's commitment to inclusive education.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Challenges in realizing the right to education for people with disabilities in Pakistan include limited accessibility to educational facilities, inadequate support services such as specialized staff and assistive technologies, and pervasive discrimination and stigma that lead to exclusion. Additionally, there is often insufficient awareness and training among educators about inclusive education practices. Legal and policy gaps also hinder effective implementation and enforcement of the rights of students with disabilities, creating barriers to their full participation in the education system.

Students from poor households:

- | | |
|--|--|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ²³ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☐ Curricula are rid of all stereotypes ²⁴ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In Pakistan, several policies support students from poor households by addressing financial barriers to education. The National Education Policy (2021-2025) emphasizes equity and inclusiveness, while programs like the Benazir Income Support Program (BISP) and Ehsaas Program provide conditional cash transfers and education stipends to encourage school attendance and reduce dropout rates. Provincial laws ensure free and compulsory education, and various scholarship programs, including the Prime Minister's National Laptop Scheme, offer financial aid and resources. Additionally, school feeding programs and non-formal education centers help mitigate economic challenges. Despite these efforts, challenges in funding, resource

²³ Supra note 15.

²⁴ Supra note 16.

allocation, and program accessibility persist, requiring enhanced coordination and effective implementation to ensure equitable educational opportunities.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

Despite policies aimed at providing free education, hidden costs such as uniforms, books, and transportation remain a financial burden for low-income families, limiting regular school attendance. In Punjab, Pakistan, several challenges hinder students from poor households from accessing education:

Economic Challenges:

1. **Poverty:** Limited financial resources prevent access to education.
2. **High Costs:** Expenses for tuition, uniforms, and materials are unaffordable for many.
3. **Lack of Scholarships:** Insufficient scholarships and financial aid for underprivileged students.

Social and Cultural Challenges:

1. **Social Isolation:** Students from poor backgrounds may experience isolation and stigma.
2. **Cultural Barriers:** Social norms can restrict access to education, especially for girls.
3. **Lack of Awareness:** Limited understanding of available educational opportunities and their benefits.

Institutional and Structural Challenges:

1. **Inadequate Infrastructure:** Schools suffer from poor conditions and lack essential facilities.
2. **Teacher Shortage:** There is a lack of qualified teachers, particularly in rural areas.
3. **Inefficient Governance:** Weak governance and lack of accountability affect the education system.

Specific Challenges in Punjab:

1. **Rural-Urban Divide:** Significant disparities in access and quality of education between rural and urban regions.
2. **Limited Access to Higher Education:** Fewer opportunities for higher education, especially for girls.
3. **High Dropout Rates:** Elevated dropout rates, particularly among girls and rural communities.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation²⁵ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education²⁶. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|---|--|
| ☐ Prior to pre-primary education, ECCE services are free | ☐ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☐ Prior to pre-primary education, ECCE services are affordable | |
| ☐ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

In Pakistan, several organizations and programs are actively enhancing Early Childhood Care and Education (ECCE). Notable NGOs like Save the Children, The Citizens Foundation (TCF), SOS Children's Village, CARE International, and Plan International run various ECCE initiatives, including improving access to quality early education, teacher training, and community-based programs. Additionally, the Early Childhood Education Program by the Ministry of Federal Education and Professional Training focuses on policy implementation and curriculum development. The Pakistan Institute of Development Economics (PIDE) supports ECCE through research and policy recommendations, contributing to evidence-based improvements in early childhood education

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

In Pakistan, pre-primary education is not compulsory and free of charge, although there have been efforts to improve access. Generally, pre-primary education targets children aged 3 to 5 years and lasts for 1 to 2 years, encompassing programs like Nursery and Kindergarten. While some provinces, such as Punjab and Sindh, have implemented policies to enhance early childhood education, including integrating it into broader education systems, access and affordability remain uneven. Challenges persist in ensuring universal access, particularly in rural and underserved areas, where additional costs can still pose barriers for low-income families.

²⁵ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

²⁶ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- ☐ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

In Pakistan, pre-primary education is generally free of charge in public schools, as the government provides full support for pre-primary education.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|--|
| <ul style="list-style-type: none"> ☐ Limited access ☐ Issues of equity and inclusion ☐ Poor quality programmes ☐ Other: | <ul style="list-style-type: none"> ☐ Poor learning outcomes ☐ Low number of professionally trained educators ☐ Lack of support to families |
|---|--|

- Please elaborate. Brief quantitative information may be added.

In Pakistan, the realization of early childhood care and education (ECCE) and pre-primary education faces multiple challenges, including limited access due to inadequate infrastructure and insufficient public schools, particularly in rural and marginalized areas. Issues of equity and inclusion persist, with children from low-income families, girls, and those with disabilities facing significant barriers. Additionally, the quality of programs is often poor, with outdated curricula and inadequate learning environments, leading to poor learning outcomes and insufficient preparation for primary education. The sector also struggles with a low number of professionally trained educators, which affects the delivery of effective teaching, while a lack of support to families, especially in disadvantaged communities, hampers their ability to engage in and prioritize early learning opportunities for their children.

Currently 608581 learners are enrolled in the 19430 school established by the Literacy & NFBE department in the Punjab

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

In Pakistan, primary education typically begins at age 5 or 6, depending on the child's readiness and the specific school system. The primary education cycle lasts for 5 years, covering grades 1 through 5. After primary education, students generally proceed to middle school, which includes grades 6 through 8.

- Is primary education compulsory and free of charge?

- ☐ ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☐ ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

In Pakistan, primary education is officially compulsory and free of charge in public schools, as mandated by Article 25-A of the Constitution, which guarantees the right to free and compulsory education for all children aged 5 to 16 years.

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ ☒ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Survival rate till grade V is 77%.

Primary out of School rate in 36%

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

In Pakistan, lower secondary education typically begins at age 10 and above, following the completion of primary education. This stage covers grades 6 through 8 and lasts for 3 years. After completing lower secondary education

- Please provide the age of enrolment and duration of upper secondary education:

In Pakistan, upper secondary education generally begins at age 14 or 15, after completing lower secondary education. This stage includes grades 9 through 12 and lasts for 4 years.

- Is lower and upper secondary education compulsory and free of charge?

- ☐ ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☐ ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ ☒ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☐ ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

In Pakistan, lower secondary (grades 6-8) and education are intended to be free of charge in public schools and are covered under the constitutional provision of Article 25-A, which mandates free and compulsory education for all children aged 5 to 16 years.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Act L of (2016) An Act to prohibit the employment of children and to restrict the employment of adolescents in certain occupations and processes.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ ☒ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |

- Please elaborate. Brief quantitative information may be added.

In realizing secondary education in Pakistan, several challenges have been encountered. There is limited access to secondary education, particularly in rural and underserved areas. Issues of equity and inclusion persist, affecting the ability of all students to benefit equally from educational opportunities resulting low transition rate . High dropout rates and poor learning outcomes exacerbate the problem, with many students leaving school before completing their education or struggling to meet learning benchmarks. Low readiness of primary graduates for secondary education contributes to these issues, as many students enter secondary school without the necessary foundational skills.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3²⁷, and target 4.4²⁸. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ ☒ Higher education is accessible through financial incentives and scholarships
- ☐ ☒ Higher education is accessible through positive or affirmative action measures

²⁷ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

²⁸ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- ☐ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

In Pakistan, higher education is generally accessible based on individual capacity and qualifications, with various scholarships and financial incentives available to support students. Affirmative action measures are in place to aid underrepresented groups, and institutions are increasingly adopting flexible learning pathways, including the recognition of prior learning. However, higher education is not free of charge, and the credit transfer system between states is not widely implemented. These efforts aim to make higher education more inclusive and accessible while addressing diverse needs and backgrounds.

- What challenges were encountered in realizing higher education?

- | | |
|--|---|
| <ul style="list-style-type: none"> ☒ Limited access ☒ Issues of equity and inclusion ☒ Poor quality programmes ☐ Poor learning outcomes | <ul style="list-style-type: none"> ☒ Low number of professionally trained professors ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
|--|---|

- Please elaborate. Brief quantitative information may be added.

In realizing higher education in Pakistan, several challenges have been encountered. Limited access to higher education, particularly in remote and underserved areas, restricts opportunities for many students. Issues of equity and inclusion persist, affecting the ability of marginalized groups to access and benefit from higher education. The quality of programs can be poor, leading to inadequate preparation and outcomes for graduates. Poor learning outcomes further compound these issues, impacting the effectiveness of higher education. Additionally, there is a low number of professionally trained professors, which affects the quality of instruction and academic research. There are also insufficient mechanisms to ensure a smooth transition from secondary to tertiary education, leaving students underprepared for higher education demands.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality

education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☐ ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ ☒ Provision of literacy programmes
- ☐ ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ ☒ Provision of free of charge learning opportunities
- ☐ ☒ Provision of professional training including reskilling and upskilling programmes
- ☐ ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ ☒ Provision of free of charge career guidance and counselling
- ☐ ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.

- Please elaborate further on the measures taken:

Recent initiatives in Pakistan to promote continuing education and equitable access to learning and training opportunities include the Kamyab Jawan Program, which provides free skills training and professional development for youth, and the Digital Pakistan Initiative, aimed at enhancing digital literacy across the country. The Hunarmand Pakistan (Skills for All) Program offers vocational training to improve employability, while Non-Formal Education (NFE) Centers provide basic literacy and skills training to those who missed out on formal schooling. The Ehsaas Education Stipend Program incentivizes school attendance, particularly for girls, by offering cash stipends to low-income families. Additionally, the Recognition of Prior Learning (RPL) initiative by NAVTTC certifies skills acquired through non-formal means, improving job prospects for workers without formal education credentials.

Literacy & NFBE Department has established a special centers for Adult Literacy. Also designed a separate programme / project by keeping in view the major professions (agriculture, livestock, fisheries) and prisoners, social center (eg Dar ul amman etc) to eradicate illiteracy.

- What challenges were encountered in realizing adult learning and education?

- ☐ ☒ Limited access
- ☐ ☒ Limited funding
- ☐ ☒ Issues of equity and inclusion
- ☐ ☒ Poor learning outcomes

☐ ✓ Poor quality programmes

☐ ✓ Low number of professionally trained educators

- Please elaborate. Brief quantitative information may be added.

In Pakistan, realizing adult learning and education faces several challenges, including limited access to programs, particularly in rural and underserved areas. Many adults are unaware of available educational opportunities or their benefits. Inadequate infrastructure and resources further hinder the effectiveness of adult education programs. Financial constraints and low enrollment rates also pose significant barriers, as do competing priorities and lack of motivation. Additionally, the quality and relevance of programs may be insufficient, with curricula that often do not meet the specific needs of adult learners. The lack of support services, such as counseling and career guidance, exacerbates these issues, affecting the overall success of adult education initiatives.

In addition the Pupil Teacher ratio is in the public sector is :

Primary: 39, Middle: 25, High :30

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ ✓ State monitoring and inspections
- ☐ ✓ Health and sanitation
- ☐ ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ ✓ Infrastructure
- ☐ ✓ Curriculum
- ☐ ✓ Student-teacher ratio
- ☐ ✓ School fees (if relevant)

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

National Plan of Action (2001-2015): Developed to fulfill the Education for All Dakar Framework commitments, this plan focused on improving access to education for disadvantaged groups, especially girls and women, enhancing community participation, and raising the quality of basic education. It projected that 5.06 million of the 6.7 million

primary-aged out-of-school children would be enrolled by 2016, with an estimated cost of PKR 189 billion. National Education Policy (2009): Aims to address gender and rural-urban disparities in education, revitalizing the education system to meet international commitments, including those related to Education for All (EFA) and Millennium Development Goals (MDGs).

What challenges were encountered in realizing quality education?

- | | |
|--|--|
| ☒ Non-supportive or inadequate learning environments | ☒ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☒ Inadequate parental support to education |
| ☐ Cost of education | ☒ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

In Pakistan, several challenges impede the realization of quality education. Inadequate learning environments include poor infrastructure and overcrowded classrooms. Violence in schools, such as corporal punishment and bullying, disrupts learning and affects student well-being. The cost of education, including indirect expenses for textbooks and transportation, poses barriers for low-income families. Conflicts and crises disrupt schooling and displace students. Low-quality infrastructure and materials hinder effective teaching, while inadequate parental support and long distances to schools, particularly in rural areas, further impact student attendance and educational outcomes.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.

- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

The Pakistan Teacher Education and Professional Development Program (PTEPDP) conducted a Performance Gap Analysis and Training Needs Assessment (TNA) of public sector teacher training institutions. The TNA evaluated various aspects, including the quality of education, efficiency in delivering training, resource needs, curriculum relevance, and professional development opportunities. Consultants visited 24 institutions, including those offering Primary Teaching Certificate (PTC) and Certificate of Teaching (CT) courses, graduate and postgraduate programs, Provincial Institutes of Teacher Education (PITEs), the University of Education Punjab, and Bureaus of Curriculum in several provinces. They used individual and group interviews, supported by a 142-item questionnaire, to gather information. Key concerns identified included overlapping roles between Bureaus of Curriculum and PITEs, a lack of interaction and coordination among institutions, and insufficient regular budgetary allocations for in-service training, with most funding coming from government aid projects and donor agencies like UNICEF and UNESCO.

- What challenges were encountered in the education personnel?

- ☒ Shortages of teaching staff
- ☒ Lack of qualified, trained and motivated teaching staff
- ☐ Lack of training centres
- ☐ Other:
- ☒ Low quality educational infrastructure and materials
- ☐ High student – teacher ratio

- Please elaborate. Brief quantitative information may be added.

In Pakistan, education personnel face several challenges that affect the quality of education:

1. **Teacher Shortage:** Many schools struggle to recruit enough teaching staff to meet the growing educational demand, leading to overcrowded classrooms and compromised education quality.
2. **Lack of Qualified Teachers:** A significant number of educators lack sufficient training and professional development, impacting teaching effectiveness and motivation.
3. **Limited Training Opportunities:** Insufficient training centers restrict opportunities for teachers to improve their skills and stay updated on best practices.
4. **Poor Infrastructure and Resources:** Schools often face outdated textbooks, inadequate facilities, and subpar classroom environments, hindering learning.

5. **High Student-Teacher Ratios:** Overcrowded classrooms prevent teachers from giving individualized attention, negatively affecting student engagement and outcomes.

Efforts to address these challenges include:

- **Monitoring and Reporting Systems:** The Literacy & NFBE Department has equipped 700 staff with Android phones for real-time monitoring and reporting on teacher presence and student outcomes.
- **Centralized MIS System:** A system has been set up for quick, data-driven policy decisions and comparative analysis.
- **Digital Literacy Initiatives:** Around 300 tablets have been distributed to teachers in Rajanpur and Dera Ghazi Khan districts to promote digital literacy as part of the Punjab government's vision.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.²⁹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☐ Curriculum includes human rights education.
- ☐ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

In Pakistan, national efforts to direct education towards the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms include the National Education Policy (2021), which promotes holistic education and human rights. The Constitution of Pakistan (1973), Article 25-A ensures free and compulsory education, supporting equal access. The Right to Free and Compulsory Education Act (2012) reinforces this commitment. Additionally, Human Rights Education Initiatives by the National Commission for Human Rights (NCHR) and participation in UNESCO's Education for Sustainable Development (ESD) highlight the integration of human rights education into

²⁹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development”.

the curriculum, aiming to foster both personal development and respect for fundamental freedoms.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision³⁰.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation³¹ explicitly apply to non-state educational institutions. Please specify:

In Pakistan, ensuring the provision of quality non-state education involves several measures, including regulation and accreditation by bodies such as the Higher Education Commission (HEC) and provincial authorities. The Private Schools Regulatory Authority (PSRA) enforces standards for private schools, while institutions must adhere to national curriculum guidelines set by the Federal Ministry of Education. Partnerships with organizations like The Citizens Foundation (TCF) and SOS Children's Village help enhance educational quality, and initiatives such as the Pakistan Education Foundation (PEF) monitor and support non-state schools. Additionally, government grants and subsidies aid in improving school infrastructure and resources, contributing to overall educational quality.

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

Policies such as the Punjab Private Educational Institutions (Promotion and Regulation) Ordinance, the Sindh Private Educational Institutions (Regulation and Control) Ordinance, and similar regulations in other provinces are designed to ensure that non-state education providers operate within a framework that promotes equity and inclusion. These policies require non-state schools to be registered and adhere to specific quality standards, such as employing qualified teachers, maintaining safe and adequate infrastructure, and following an approved curriculum. Additionally, they enforce measures to prevent discriminatory practices and promote inclusivity by ensuring that non-state schools do not charge exorbitant fees or engage in selective admissions that would exclude disadvantaged groups. The overall goal is to provide a relevant alternative to public education that complements rather than supplants the role of the state in delivering universal education.

Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

In Pakistan, legal provisions do provide for the rights of parents and legal guardians to provide religious and moral education to their children. The Constitution of Pakistan guarantees the right to education and recognizes the role of parents in their children's

³⁰ Private, faith-based, NGOs, community actors.

³¹ See: Article/Paragraph 1(1).

upbringing, including religious and moral education. The 1973 Constitution, under Article 22, ensures that no one shall be compelled to receive religious instruction or take part in any religious ceremony if it conflicts with their beliefs. Additionally, various education policies and provincial regulations support the inclusion of religious and moral education as part of the broader educational framework, reflecting the importance of parental rights in shaping their children's educational experiences according to their values and beliefs.

- Please elaborate:

In Pakistan, the legal and regulatory framework for non-state educational institutions, such as the Punjab Private Educational Institutions (Promotion and Regulation) Ordinance and the Sindh Private Educational Institutions (Regulation and Control) Ordinance, covers several key areas to ensure quality and safety. These include the mandatory registration of schools with relevant authorities and regular state monitoring and inspections to ensure compliance with standards. It sets requirements for the qualifications of teachers and mandates adherence to health and sanitation guidelines to maintain a safe and healthy environment. Safety measures are emphasized to protect children from violence and harassment, including gender-based violence, both in and around schools. The framework also addresses standards for infrastructure, curriculum, student-teacher ratios, school fees, and procedures for school closures, ensuring that non-state institutions provide a regulated and conducive learning environment.

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

In non-state education provision in Pakistan, several challenges have emerged. There is low-quality educational infrastructure and materials in some non-state institutions, which affects the learning environment. The low number of professionally trained teachers impacts the effectiveness of education, as many educators lack the necessary qualifications and training. High student-teacher ratios in overcrowded classrooms further strain teaching effectiveness and limit individual attention. There are also issues of equity and inclusion, with non-state schools sometimes failing to cater to students from disadvantaged backgrounds. Additionally, weak government regulatory and monitoring capacity makes it difficult to ensure that non-state providers meet required standards and maintain quality.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion³².

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

In Pakistan, measures to ensure the provision of quality digital education include initiatives such as Digital Pakistan and the Prime Minister's Kamyab Jawan Program, which integrate digital tools into education. The Pakistan Education and Research Network (PERN) supports digital learning through online platforms, while collaborations with organizations like the Telecom Foundation and The Citizens Foundation (TCF) enhance digital literacy and resources in schools. Training programs for educators, such as the Teaching English Language Program (TELP), focus on effective technology use. Additionally, the Education Sector Reforms aim to improve digital infrastructure, and the National Education Policy (2021) promotes digital tool integration and literacy.

☐ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content³³, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

³² Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

³³ Lack of internet connection, basic infrastructure or devices.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ ☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ ☒ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ ☒ Limited access to hardware (devices, chargers, etc.) |
| ☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

In Pakistan, the challenges encountered in digital education provision include a lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning pathways. There is also a lack of equity and inclusion in digital learning solutions, which impacts access for marginalized groups. Inadequate safety measures and IT support pose risks related to child online safety and cybersecurity. Limited access to internet and electricity restricts connectivity and learning opportunities, while limited access to hardware like devices and chargers further hampers digital education. Difficulty in regulating digital education solutions and sustainably financing these solutions on a national scale presents additional barriers. There is also a lack of digital skills development necessary for the meaningful integration of technology in teaching, and disjointed or fragmented solutions that are not centrally systematized or regulated create inefficiencies in implementation and use.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☐ Monitoring results are made public. [Please provide the link:](#)

- ☐ ✓ Monitoring processes are participatory, inclusive and regular.
- ☐ ✓ Sector-wide and multisector approach is adopted to education governance.
- ☐ ✓ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☐ ✓ The decision-making process for the allocation of resources to education is transparent.
- ☐ ✓ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

In Pakistan, governance in education has been strengthened through several key measures. The 18th Constitutional Amendment decentralized education responsibilities to provincial governments, allowing for more localized decision-making. Each province has its own education department, and national policies provide a framework for improvement. Regulatory bodies such as the Bureaus of Curriculum and Provincial Institutes of Teacher Education oversee curriculum and teacher training. Monitoring and evaluation systems track performance and ensure standards are met, while educational reforms address quality and access issues. Public-private partnerships are encouraged to enhance resources and service delivery, and Education Management Information Systems (EMIS) aid in data management for informed decision-making. Legislative frameworks ensure free and compulsory education, set standards for institutions, and promote transparency and accountability.

- What challenges were encountered in terms of governance?

- ✓ Budgetary constraints
 - ✓ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
 - Poor dialogue with teachers' trade unions
 - Other:
- Absence of supportive/ inconsistent/obsolete legal and policy environment
 - ✓ Lack or weakness of monitoring systems – including the lack of reliable data

- Please elaborate. Brief quantitative information may be added.

In Pakistan, governance in education faces several challenges including budgetary constraints that limit resources for effective implementation. There is a lack of involvement from relevant stakeholders and poor cooperation and coordination at various levels, which hinders effective policy execution. Additionally, poor dialogue with teachers' trade unions prevents addressing educators' issues adequately. The

education sector also suffers from an inconsistent or outdated legal and policy environment, and there is a weakness in monitoring systems, including unreliable data, which affects the ability to oversee and enhance educational quality effectively.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- Translation of the Convention/Recommendation into the national and possibly local languages

- Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources

- Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

- Other: